

26PR00295 Estate of Sidney Brooks

County: santa-barbara

Division: Decedent's Estate

Hearing date: 2026-07-29

Motion: Petition for Probate and Letters Testamentary

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Tentative Ruling: Estate of Sidney Brooks

Case Number

26PR00295

Case Type

Decedent's Estate

Hearing Date / Time

Wed, 07/29/2026 - 09:30

Nature of Proceedings

Petition for Probate and Letters Testamentary

Tentative Ruling

Probate Notes:

Appearances required.

The following must be submitted:

Proof of Publication. Proof of Publication was filed, but was not signed by the agent for publication. Jurisdiction of the Probate Court is obtained by publication in accordance with Article 3 of Division 7, Part 2, Chapter 2 Probate Code. (Prob. Code, § 8003(b).)

It is unacceptable to merely file a copy of the newspaper clipping as proof of publication. A Petitioner must obtain an affidavit executed under the penalty of perjury by the person with authority to affect publication at the newspaper. (Prob. Code,

§8124.)

Original Will. An original will and any codicil to that will must be lodged with the Court. (Prob. Code, §§ 8200, et seq.) It is insufficient to attach a copy of the will to the petition without lodging the original.

If the will is holographic, "the petitioner shall also attach a typed copy of the will." (Prob. Code, §8002(b)(1).) No typed copy of the will was submitted.

If the original is lost, petitioner must amend the Petition to provide an attachment alleging why the presumption of destruction in Probate Code section 6124 should not apply, or provide evidence overcoming the presumption of destruction.

Petitioner may overcome this presumption with substantial evidence that shows the Court some supported fact that the Decedent did not destroy the will. Petitioner is referred to the following authority to understand the evidence required to overcome the presumption of destruction in Probate Code section 6124:

Estate of Trikha (2013) 219 Cal.App.4th 791, 804 [substantial evidence required to overcome presumption]

Lauermann v. Superior Court (2005) 127 Cal.App.4th 1327, 1333 [Duplicate Original not usually sufficient]

Affidavit of Subscribing Witness. The will is not self-proving, because it does not meet the requirements of Probate Code section 6110, 8220(b), and 8221(b)(1) [must contain attestation clause of witnesses under penalty of perjury]. To overcome this defect, Petitioner must submit an Affidavit of Subscribing Witness (Form DE-131), of at least one of the witnesses to the execution of the will.

It is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Judges

Judge Denise M. Hippach

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